

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Evelis Otero	Team: Team # 3	CCRB Case #: 200910211	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/21/2009 1:00 AM	Location of Incident: § 87(2)(b)	Precinct: 47	18 Mo. SOL 12/21/2010	EO SOL 12/21/2010	
Date/Time CV Reported Wed, 07/01/2009 4:40 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/01/2009 4:40 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Maguire	27294	945943	047 PCT
2. SGT Amanjeet Sandhu	04523	931138	047 PCT
3. POM Christophe Salley	00289	939407	047 PCT
4. POF Eleanor Walsh	24470	946384	BX IRT

Officer(s)	Allegation	Investigator Recommendation
A.POM Sean Maguire	Abuse: PO Sean Maguire stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POM Sean Maguire	Abuse: PO Sean Maguire frisked § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.POM Christophe Salley	Abuse: PO Christopher Salley frisked § 87(2)(b)	§ 87(2)(b)
D.SGT Amanjeet Sandhu	Abuse: Sergeant Amanjeet Sandhu authorized the issuance of summonses to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 1, 2009, § 87(2)(b) § 87(2)(b) and § 87(2)(b) filed a complaint in-person with the CCRB (enc. 33-35). On June 21, 2009, at approximately 1:00am, § 87(2)(b) and their friend, § 87(2)(b) were transported from § 87(2)(b) in the Bronx, to the 47th Precinct Stationhouse by PO Sean Maguire of the 47th Precinct, in connection with a burglary investigation. The following allegations resulted from the officer's actions:

- **Allegation A – Abuse of Authority: PO Sean Maguire stopped** § 87(2)(b) and § 87(2)(b) § 87(2)(g)
- **Allegation B – Abuse of Authority: PO Sean Maguire frisked** § 87(2)(b) and § 87(2)(b) § 87(2)(g)
- **Allegation C – Abuse of Authority: PO Christopher Salley frisked** § 87(2)(b) § 87(2)(g)
- **Allegation D – Abuse of Authority: Sergeant Amanjeet Sandhu authorized the issuance of summonses to** § 87(2)(b) and § 87(2)(b) § 87(2)(g)
- § 87(4-b), § 87(2)(g)

This case was originally assigned to Investigator Amy Klein on July 7, 2009, and was reassigned to Investigator Evelis Otero on February 11, 2010.

Results of Investigation

Overview

According to SPRINT printout number § 87(2)(b) § 87(2)(b) called 911 to report that three Black males, one of which was wearing a red and white jacket, another who was wearing a grey hooded sweatshirt and the third male who was wearing black, were breaking into her vehicle (enc. 83).

A review of the 911 CD revealed that § 87(2)(b) described the perpetrators as three males who appeared to be 16 or 17-years-old. One wore a red and white jacket, the second wore a “hoodie” and the third was wearing grey. The 911 operator misinterpreted, stating that the perpetrators were three male Blacks, and that one was wearing a red and white jacket, the second wore a grey “hoodie” and the third was wearing black. By the end of the call, two males had left and one remained in § 87(2)(b) s driveway. The 47th Precinct patrol sergeant, identified through the investigation as Sergeant Amanjeet Sandhu, sent van number 5977, which was “right around the corner,” to the location. Afterwards, “four stopped in regards” comes over the radio.

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Black male, who is 6’ 3” tall and has black hair and brown eyes.

Notice of Claim

§ 87(2)(b) stated within the Notice of Claim that he was illegally detained at the 47th Precinct Stationhouse (enc. 90-102).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 1, 2009 (enc. 36-40). On June 21, 2009, at approximately 1:00am, § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) were coming from a party located at § 87(2)(b) in the Bronx. They decided to visit their friend, § 87(2)(b) at his home, located at § 87(2)(b) in the Bronx. § 87(2)(b) and § 87(2)(b) stood outside § 87(2)(b) s house and waited for him for approximately two minutes before § 87(2)(b) came outside. § 87(2)(b) was wearing a black, long-sleeved, Gap button-down shirt rolled up to his elbows, dark blue jeans, a backpack, and black and white Converse sneakers. § 87(2)(b) was wearing a red, blue, green, and yellow plaid flannel shirt, light blue stonewashed jeans and lime green sneakers. § 87(2)(b) was wearing a grey shirt with the words “Kid Robot” emblazoned across the chest in neon pink, purple, and yellow, a matching Kid Robot hat, dark grey stonewashed jeans, and black and grey Nike Blazers sneakers. § 87(2)(b) was wearing a black hooded sweatshirt, a white t-shirt, blue sweatpants, and black and blue Nike Dunks sneakers.

A marked police van driving down § 87(2)(b) made a right onto § 87(2)(b) and pulled over to the side of the street directly in front of them. Two uniformed officers, identified through the investigation as PO Sean Maguire and PO Eleanor Walsh of the 47th Precinct, exited the van.

PO Maguire approached and informed them that the police had received a call regarding a car being broken into and asked them whether they knew anything about it. § 87(2)(b) and § 87(2)(b) denied knowing anything in regards. PO Maguire asked them

whether any of them had been arrested previously. § 87(2)(b) and § 87(2)(b) denied having been previously arrested. PO Maguire turned to § 87(2)(b) and asked, “Do you have any warrants or any problems from Georgia?” § 87(2)(b) replied, “No, I’m from the Bronx.” PO Maguire explained that sometimes New York suspects go down to Georgia, and NYPD has to go there to investigate. PO Maguire then asked them if they had any identification. § 87(2)(b) and § 87(2)(b) replied that they did, but § 87(2)(b) stated that his identification was inside the house. § 87(2)(b) offered to go into his house to get his identification but PO Maguire ignored him. PO Maguire did not take their identifications.

PO Maguire asked, “Can we search you?” and they responded, “Yes.” PO Maguire then asked them whether they had any drugs or weapons on them, which they denied. PO Maguire patted down § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not see whether or not PO Maguire went into his friends’ pockets or waistbands. PO Maguire did not frisk or search § 87(2)(b). When he was finished frisking them, PO Maguire told them to wait for a while. PO Maguire went over the radio saying, “I got four suspects here.”

Approximately five minutes later, two additional officers, identified through the investigation as PO Christopher Salley and Sergeant Amanjeet Sandhu of the 47th Precinct, arrived in a patrol car. PO Salley asked them whether they had any drugs or weapons on them and told them the same story regarding the call about a car robbery. PO Salley then stated that § 87(2)(b) had been identified because he was wearing a red shirt. PO Salley asked § 87(2)(b) whether he lived on 241st Street and he responded that he lived in Brooklyn. PO Salley then said, “Okay, we’re about to go check out the ID,” got back into the RMP and drove off.

Approximately two minutes later, PO Salley returned and exited the RMP. PO Salley stated, “They were ID’d. PO Walsh handcuffed § 87(2)(b) while PO Maguire handcuffed § 87(2)(b) and § 87(2)(b). PO Salley handcuffed § 87(2)(b). § 87(2)(b) was wearing a backpack when he was handcuffed and the backpack had not been searched. The officers instructed them to get in the back of the police van and they complied. At this point, an unidentified individual came out of § 87(2)(b)’s house and looked around. There were no other individuals present during the incident.

While inside of the van, § 87(2)(b) asked, “Who is the person that ID’d us? We want to see the person that ID’d us.” The officers did not respond. PO Salley came into the van and repeated the story. § 87(2)(b) wondered why all four of them were placed in the van if only § 87(2)(b) had been identified. PO Salley took out his Blackberry cell phone and took a picture of § 87(2)(b) and § 87(2)(b). PO Salley stated he was going to take the photo to the person who had made the call and see if the description was accurate. PO Salley exited the vehicle again and returned shortly after, informing them once again that they been “ID’d.” Afterwards, they were transported to the 47th Precinct Stationhouse.

At the stationhouse, PO Salley asked who had a backpack and § 87(2)(b) informed him that he had one. PO Salley asked § 87(2)(b) what was in his bag and he responded, “My camcorder.” PO Salley asked § 87(2)(b) what brand of camcorder it was and he informed him that the camera was a Sony. PO Salley then walked over to PO Walsh and whispered something to her. Afterwards, PO Salley took § 87(2)(b)’s bag. PO Maguire then searched § 87(2)(b)’s bag and PO Salley took it away.

While at the stationhouse, they were not fingerprinted and their pictures were not taken. Instead, they were taken directly to the holding cell. An unidentified officer, PO1 (Hispanic, male, medium complexion, 5’ 9” tall, 225-285 lbs, late 20’s to early 30’s in age), instructed them to remove their shoelaces and then cut the drawstring out of § 87(2)(b)’s hooded sweatshirt and sweatpants. § 87(2)(b) and § 87(2)(b) asked PO Maguire why they were being placed into a holding cell. PO Maguire informed them that a camcorder, similar to § 87(2)(b)’s, was stolen during the car robbery.

Approximately 10 to 15 minutes later, PO Maguire returned to the holding cell, returned § 87(2)(b) and § 87(2)(b)'s identifications and issued each of them summonses for disorderly conduct. Throughout the incident, the young men used a normal tone of voice. At no point did they make unreasonable noise or obstruct pedestrian or vehicular traffic.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Black male, who is 5' 9" tall and has black hair and brown eyes.

Notice of Claim

§ 87(2)(b) stated within the Notice of Claim that he was illegally detained at the 47th Precinct Stationhouse (enc. 90-102).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 1, 2009 (enc. 45-48). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) drove § 87(2)(b) and § 87(2)(b) in his red 2005 Honda Civic to § 87(2)(b)'s house. They made no stops and had not picked up anyone else along the way. § 87(2)(b) was wearing a red shirt, blue jeans, and lime green sneakers. After finding parking in front of a house across the street, approximately four or five cars from the corner, they walked directly to § 87(2)(b)'s gate. They waited outside for approximately four to five minutes before § 87(2)(b) emerged from the house and approached them. At this time, the street was quiet and there were no civilians passing by.

When PO Maguire arrived on the scene, he asked them how long they had been there. PO Maguire frisked their upper torsos and chest areas. PO Maguire then searched their front and back pants pockets as well as § 87(2)(b)'s and § 87(2)(b)'s backpack. While he was searching § 87(2)(b)'s pockets, PO Maguire removed his wallet, flipped through it, and stuck his finger in it and then returned the wallet to the pocket where he had found it. PO Walsh may have searched one person, but § 87(2)(b) did not recall who, and could not be sure whether she searched anyone at all.

When PO Salley arrived on the scene, he asked them if they had any weapons or drugs and frisked and searched the young men again. PO Salley did not remove anything from § 87(2)(b)'s pockets; however, he did search § 87(2)(b) and § 87(2)(b)'s backpacks again. PO Salley then asked them for identification, which everyone provided, except for § 87(2)(b) who said that he could go inside the house to get his. PO Salley ignored § 87(2)(b)'s offer. PO Salley checked their identifications and then returned them. PO Salley informed § 87(2)(b) that he fit the description because he had a red shirt on.

§ 87(2)(b) did not claim to have observed an officer cut the drawstring out of § 87(2)(b)'s hooded sweatshirt and sweatpants.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Black male, who is 5' 7" tall and has black hair and brown eyes.

Notice of Claim

§ 87(2)(b) stated within the Notice of Claim that he was illegally detained at the 47th Precinct Stationhouse (enc. 90-102).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 1, 2009 (enc. 41-44) § 87(2)(g)

PO Maguire instructed them to line up in front of § 87(2)(b)'s gate. PO Maguire frisked § 87(2)(b) and § 87(2)(b) in that order. However, § 87(2)(b) did not see exactly what PO Maguire was doing to § 87(2)(b) and § 87(2)(b). PO Maguire searched § 87(2)(b)'s backpack. § 87(2)(b) was wearing his backpack at the time so he could not see whether PO Maguire was opening the pockets or simply feeling the bag.

At the stationhouse, PO Maguire also cut the drawstrings out of § 87(2)(b)'s sweatpants and hooded sweatshirt using a small knife.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Black male, who is 5' 9" tall and has black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed by the CCRB at § 87(2)(b) in the Bronx on July 30, 2009 (enc. 49-52). § 87(2)(g)

PO Maguire frisked § 87(2)(b) and § 87(2)(b) patting down each of their waists and thighs. PO Maguire then received an incoming radio run, after which he told them the following: A woman had reported that a group of four guys had tried to break into a car on § 87(2)(b) and they fit the description. PO Maguire then asked them to turn around and step up against the fence and they complied. PO Maguire frisked them again and handcuffed them immediately afterwards. PO Maguire did not look inside § 87(2)(b) or § 87(2)(b)'s backpacks, but he might have patted the backpacks down. PO Maguire did not search § 87(2)(b)'s pockets, but § 87(2)(b) could not see whether or not PO Maguire searched § 87(2)(b) or § 87(2)(b)'s pockets. PO Walsh assisted in the frisk, but § 87(2)(b) was unable to see whom she was frisking.

At the stationhouse, PO Maguire pulled the drawstring out of § 87(2)(b)'s hooded sweatshirt and used a two- to three-inch long knife to cut the drawstring from § 87(2)(b)'s sweatpants.

Attempts to Identify and Locate Additional Witnesses

- § 87(2)(b) was identified as a witness from SPRINT number § 87(2)(b) which was generated as a result of this incident. The investigator called § 87(2)(b) on February 16, 2010, at the phone number revealed on the SPRINT. The aforesaid number was disconnected. Searches were conducted on Whitepages.com and Cole's Directory, which yielded negative results for an additional phone number, but confirmed § 87(2)(b)'s mailing address. An additional search was conducted on Lexis Nexis, which revealed one possible number for § 87(2)(b). Three calls were made to the aforesaid number between the dates of February 17, 2010 and February 23, 2010. Contact was never established with § 87(2)(b) however, an unidentified male answered each time, confirming that she was reachable at this number, but explained that § 87(2)(b) was only available after 8pm each day. The unidentified male was unable to provide additional contact information for § 87(2)(b) but took detailed messages for her.

Two letters were mailed to § 87(2)(b) on February 17, 2010 and February 23, 2010. The letters were not returned to the CCRB. To date, the CCRB has been unable to establish contact with or otherwise obtain a statement from § 87(2)(b)

NYPD Statements

Subject Officer: PO SEAN MAGUIRE

- *PO Maguire is a § 87(2)(b)-old White male who is 6' 2" tall, weighs 200 pounds and has brown hair and hazel eyes.*
- *On the day of the incident, PO Maguire was assigned to the 47th Precinct's footpost #3 and #4 located at White Plains Road between 230th and 231st Streets. He worked alone in uniform from 5:30pm to 2:05am.*

Memo Book

PO Maguire did not have any memo book entries regarding this incident (enc. 54-56).

CCRB Testimony

PO Maguire was interviewed at the CCRB on September 18, 2009 (enc. 57-58). He initially stated that he had no recollection of any incident that occurred at § 87(2)(b) in the Bronx nor did he have any notations in his memo book as to his whereabouts around the time of incident. Photos were then presented of § 87(2)(b) and § 87(2)(b). He did not recognize them. He had no recollection of a call regarding a car break-in. In relation to his footpost, the location of incident is an estimated half mile away. Unless there was an emergency call, PO Maguire would not respond to a call half a mile away from his footpost. PO Maguire did not work with PO Walsh on the night of the incident but had worked with her in the past. PO Maguire was then asked whether he investigated a stolen camcorder. This triggered PO Maguire's memory with regards to the incident and he provided the following details.

A female officer, identified through the investigation as PO Eleanor Walsh, picked PO Maguire up from his footpost and brought him to § 87(2)(b) regarding a call reporting that four black males had broken into a car and stolen items including a camcorder. Upon their arrival at the scene, they observed four males standing on the corner. The individuals were calm, and talking amongst themselves. PO Maguire did not know if the victim, who was identified through the investigation as § 87(2)(b) had any relationship with the perpetrators.

The males fit the description provided by the SPRINT. Sergeant Sandhu responded to the scene and spoke to the individuals. They frisked all of the individuals at the scene for their safety. However, PO Maguire later noted that the group never made any actions which caused him to fear for his safety. PO Maguire further stated that it was standard procedure to frisk anyone he stops. They frisked one of the backpacks at the scene and felt a laptop and what could have been a camcorder. PO Maguire then stated that the bag was searched for safety and because it was heavy enough that a weapon might have been inside of it. § 87(2)(b) also positively identified the individuals as being the perpetrators at the scene. Sergeant Sandhu transported § 87(2)(b) to the precinct. The four males were arrested and transported to the precinct, where they were searched again. However, at the precinct, § 87(2)(b) identified a different camera brand than the one carried by the individuals.

PO Maguire and PO Walsh interacted with the group and most likely asked the males whether they had drugs or weapons on their person because all officers ask this standard question. PO Maguire characterized the individuals as being very compliant throughout the incident and had no knowledge that summonses were issued to them. When shown a copy of the summons

issued to one of the males, PO Maguire assumed that it was issued because they were standing on the corner blocking pedestrian traffic. PO Maguire then clarified that there were no other pedestrians at the location. PO Maguire could not recall cutting the drawstring's of § 87(2)(b)'s hooded sweatshirt.

Subject Officer: SERGEANT AMANJEET SANDHU

- *Sergeant Sandhu is a § 87(2)(b)-old Asian male who is 6' 1" tall, weighs 170 pounds and has black hair and brown eyes.*
- *On the day of the incident, his assignment was patrol supervisor for the 47th Precinct. He worked in uniform from 11:05pm to 8:02am, with PO Christopher Salley.*

Memo Book

Sergeant Sandhu did not have any memo book entries regarding this incident (enc. 59-62).

CCRB Testimony

Sergeant Sandhu was interviewed at the CCRB on October 26, 2009 (enc. 63-64). On June 21, 2009, at approximately 1:00 AM, he received a call regarding 4-5 male blacks breaking into the victim's vehicle at § 87(2)(b) in the Bronx. The call noted that the victim, identified through the investigation as § 87(2)(b) was on the 2nd floor of her apartment located on the corner on § 87(2)(b) when she made this observation. Sergeant Sandhu responded to § 87(2)(b)'s apartment and did not recall if she provided any further descriptive information with regards to the perpetrators. However, Sergeant Sandhu was presented with the SPRINT, which he reviewed and noted that it listed that there was one male black wearing red and white jacket, one male black wearing grey hooded sweatshirt and one male black wearing black. Sergeant Sandhu did not remember these descriptions nor did he recall if the individuals he later saw stopped by PO Maguire fit this description. § 87(2)(b) informed him that the door of her vehicle had been unlocked and they had stolen her camcorder.

Sergeant Sandhu then went back to his vehicle and found that PO Maguire and two additional officers had individuals stopped nearby with regards. Sergeant Sandhu had no interaction with these individuals. Sergeant Sandhu spoke with PO Maguire and his partner and informed them as to the missing property. Sergeant Sandhu could not comment as to the demeanor of the individuals that had been stopped since he had no interaction with them. His officers explained that someone had been frisked. Sergeant Sandhu did not know which officer provided this information to him. Sergeant Sandhu did not recall whether his officers frisked or searched any of the individuals during his presence. Sergeant Sandhu also brought § 87(2)(b) along for identification. § 87(2)(b) was unable to confirm if these individuals were the perpetrators since it was dark outside and she had not seen their faces. The individuals were arrested and transported to the stationhouse. Sergeant Sandhu could not recall what led to their arrests except that they fit the description in that they were four Black males and were believed to have camcorders on their person. Sergeant Sandhu did not see any other group of Black males in the area at this time.

A camcorder was found in their bag. Sergeant Sandhu did not know when it was found, or how it was found. § 87(2)(b) went back to the precinct and was presented with the camcorder. § 87(2)(b) revealed that it was not her camcorder because it was a different brand. His officers informed him that they issued summonses to the individuals that were arrested for disorderly conduct. Sergeant Sandhu could not recall why the summonses were issued but that an explanation had been given to him by his officers concerning an issue with the behavior of the individuals during the stop.

It should be noted that Sergeant Sandhu could not provide a complete narrative of the incident and had great difficulty answering any questions pertaining to the incident. He appeared

to be confused throughout the interview and provided no specific chronology to the incident or any concrete observations he made during this encounter.

Subject Officer: PO ELEANOR WALSH

- *PO Walsh is a § 87(2)(b)-old White female who is 5' 5" tall, weighs 130 pounds and has blonde hair and brown eyes.*
- *On the day of the incident, PO Walsh worked from 5:20pm to 2:05am in uniform, but she could not recall who she was partnered with or what her assignment was.*

Memo Book

PO Walsh did not have any memo book entries regarding this incident (enc. 70-72).

CCRB Testimony

PO Walsh was interviewed at the CCRB on December 22, 2009 (enc. 73-74). PO Walsh could not recall the incident. A brief synopsis of the incident was provided to PO Walsh and pictures of the complainants were shown to her; however she was not able to remember anything. Her memo book does not show where she was around the time of the incident.

Subject Officer: PO CHRISTOPHER SALLEY

- *PO Salley is a § 87(2)(b)-old White male who is 6' 2" tall, weighs 290 pounds and has black hair and brown eyes.*
- *On the day of the incident, PO Salley worked from 11:15pm to 7:50am in uniform, but he could not recall who he was partnered with or what his assignment was.*

Memo Book

PO Salley did not have any memo book entries regarding this incident (enc. 65-66).

CCRB Testimony

PO Salley was interviewed at the CCRB on November 10, 2010 (enc. 67-68). PO Salley did not recall the incident. A brief synopsis of the incident was provided to PO Salley and pictures of the complainants were shown to him; however he was not able to remember anything. PO Salley did state that, if he had been the sergeant's operator, then his memo book would show sergeant's operator. The Sergeant's operator is the recorder and writes down every job they have. They do not transport suspects, however they might respond to a pick up, but that is the sergeant's responsibility. PO Salley just transports the suspects. PO Salley stated that he has never taken a picture of a potential suspect with a Blackberry. He owned a Blackberry but the Blackberry that he owned did not have a camera.

NYPD Documents

SPRINT

SPRINT number § 87(2)(b) revealed that van number 5977 from the 47th Precinct responded to the scene and stopped four males in regards to a report of a robbery. The 47th Precinct's patrol sergeant also responded to the scene. At approximately 12:57am, there were four under arrest from the location and at 1:06am the patrol sergeant transported one female to the stationhouse.

Disposition of Summonses for Incident

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

- [§ 87(2)(b)] and [§ 87(2)(b)] filed a Notice of Claim with the City of New York on August 19, 2009 (enc.). The claimants are suing for \$10,000,000.00. The outcome of the Notice of claim is still pending.
- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York with regard to the incident.

Criminal Conviction History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

CCRB History of Civilians

- [§ 87(2)(b)] and [§ 87(2)(b)] have not filed a CCRB complaint prior to this incident (enc. 27-30).

CCRB History of Subject Officers

- PO Maguire has been a member of the service for 2 years and there are no substantiated CCRB allegations against him (enc. 23).
- Sergeant Sandhu has been a member of the service for 7 years and there are no substantiated CCRB allegations against him (enc. 24).
- PO Walsh has been a member of the service for 2 years and there are no substantiated CCRB allegations against her (enc. 25).
- PO Salley has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (enc. 26).

Conclusion

Investigative Findings and Recommendations

Identification of Subject Officers

- [§ 87(2)(g)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Allegations Not Pleaded

- [§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Sean Maguire stopped § 87(2)(b)

and § 87(2)(b)

It is undisputed that PO Maguire stopped § 87(2)(b) and § 87(2)(b). As stated in *People v. De Bour*, “Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, New York Criminal Procedure Law authorizes a forcible stop and detention of that person,” *People v. De Bour*, 40 N.Y.2d 210 (1976) (enc. 1-13).

PO Maguire stated that he stopped § 87(2)(b) and § 87(2)(b) because they fit the descriptions provided via a radio-run regarding a vehicle being broken into at § 87(2)(b). According to the SPRINT (enc. 83), § 87(2)(b) described the perpetrators as three Black males, one of which was wearing a red and white jacket, another who was wearing a grey hooded sweatshirt and the third male who was wearing black. § 87(2)(b) wore a black, long-sleeved shirt, § 87(2)(b) wore a flannel shirt that was red, blue, green and yellow, § 87(2)(b) wore a grey shirt, and § 87(2)(b) wore a black hooded sweatshirt. All four of the civilians are Black males and the clothes they wore generally fit the descriptions provided in the SPRINT. Additionally, § 87(2)(b) and § 87(2)(b) were approximately two minutes away in walking distance from where the crime occurred (enc. 31-32).

§ 87(2)(g)

Allegation B – Abuse of Authority: PO Sean Maguire frisked § 87(2)(b)

and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that PO Maguire frisked them. PO Maguire acknowledged frisking the civilians, though he could not recall who specifically he frisked.

According to the *New York State Criminal Procedure Law §140.50 (3)* (enc. 14), “When upon stopping a person under circumstances prescribed in subdivisions one and two a police officer or court officer, as the case may be, reasonably suspects that he is in danger of physical injury, he may search such person for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury and of a sort not ordinarily carried in public places by law-abiding persons.” As stated in Barry Kamins’ *New York Search & Seizure*, “While CPL §140.50 (3) speaks of a ‘search,’ the courts commonly refer to this police action as a ‘frisk’

or a limited touching of the suspect for the purpose of feeling any dangerous weapons,” Kamins, New York Search & Seizure § 2.05[1](enc. 15).

PO Maguire testified that § 87(2)(b) and § 87(2)(b) remained cooperative and calm throughout the incident and that they did not do anything to cause him to fear for his safety. PO Maguire also stated that it was standard procedure to frisk anyone he stops.

The Court found in People v. Russ, 61 N.Y.2d 693 (1984) (enc. 16-18), while an officer had the right to stop the defendant, he could not frisk the individual because he lacked an independent belief that the individual was armed. An officer must have reasonable suspicion to believe that the person is armed and dangerous in order to frisk them. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: PO Christopher Salley frisked § 87(2)(b)

§ 87(2)(b) alleged that PO Salley frisked him. PO Salley could not recall the incident. PO Walsh could not recall the incident. Sergeant Sandhu could not recall witnessing any of his officers frisking any of the civilians in his presence, but indicated that he was informed by an officer, whom he could not recall, that someone was frisked. PO Maguire asserted that the civilians were frisked, but could not recall who specifically was frisked or by whom. None of § 87(2)(b)'s friends, § 87(2)(b) and § 87(2)(b) who were in the immediate vicinity when the alleged frisk occurred, claimed to have observed PO Salley do this. § 87(2)(b) was the only one of the four civilians who made allegations against PO Salley. Moreover, § 87(2)(b) made additional allegations for § 87(2)(b) and § 87(2)(b) which they never claimed. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: Sergeant Amanjeet Sandhu authorized the issuance of summonses to § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) were compliant with the officers § 87(2)(g)

According to New York State Penal Law § 240.20(enc. 19), “a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: He engages in fighting or in violent, tumultuous or threatening behavior; or he makes unreasonable noise; or in a public place, he uses abusive or obscene language, or makes an obscene gesture; or without lawful authority, he disturbs any lawful assembly or meeting of persons; or he obstructs vehicular or pedestrian traffic; or he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.” In addition, the Court held in People v. Jones that factual evidence is required to determine an individual’s “intent to cause public inconvenience, annoyance or alarm” People v. Jones, 848 N.Y.S.2d 600 2007 (enc. 19A-19C).

PO Maguire confirmed that all of the civilians were cooperative § 87(2)(g)

§ 87(2)(g) PO Maguire stated that it was possible that the summonses were issued to them because they were standing on a corner, blocking pedestrian traffic; however, he explained that there were no pedestrians passing by at the time. PO Walsh, who wrote the summonses, could not recall the incident. PO Salley could not recall the incident. Sergeant Sandhu stated that he “could not comment” on their demeanor, as he had no interactions

§ 87(2)(g) Sergeant Sandhu stated that an officer, whom he could not recall, informed him at the stationhouse that summonses were being issued to the civilians because there was an issue with their “behavior” during the incident; however, Sergeant Sandhu “could not comment” on their demeanor § 87(2)(g)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Investigator:	<u>Evelis Otero</u>	<u>07/20/10</u>
Signature	Print	Date
Supervisor:		
Title/Signature	Print	Date
Reviewer:		
Title/Signature	Print	Date
Reviewer:		
Title/Signature	Print	Date